

19178 Industrial Blvd NW – Conditional Use Permit Narrative

Applicant seeks a Conditional Use Permit under Section 30-651 *et. seq.* of the Elk River City Code to allow 19178 Industrial Blvd NW (the “Property”) to be used as a data center (the “Proposed Use”).

Property Description and Use. The Property is a 3.223 acre parcel of land currently improved with two connected one-story concrete block and metal sided buildings with a total foundation area of 63,190 square feet. The buildings were constructed in phases during the period 1978-1997. The Property is in an entirely industrial area of the City and there are no residential properties located within 500 feet of any boundary of the Property. It has been used for industrial and manufacturing purposes since 1978.

Zoning Status. The Property is currently zoned L-1 (Light Industrial). By separate application, Applicant is seeking to amend the Elk River City Code Section 30-1293(d) to add data center use as a conditional use in the L-1 (Light Industrial) Zoning District.

Exterior Modifications. Applicant does not intend to make any modifications to the exterior modifications to the exterior of the buildings or to the site except to demolish approximately 5,000 square feet of the building to create a more efficient loading dock area.

Proposed Use. The Proposed Use is a 58,000 square foot data center to be leased to one or more data center operators.

Employment. The Proposed Use will create approximately 100 construction jobs during the period of construction for repurposing the building. The construction will take approximately six to nine months. Repurposing construction will commence in Summer, 2026.

Upon commencement of operations, the Proposed Use will employ approximately 40 persons divided among three eight-hour working shifts. It is expected that no shift will have more than ten employees on site.

Parking. The Property currently has 72 parking stalls. City Code does not have a specific parking requirement relative to data centers. City staff suggests that Elk River City Code Section 30-903(11) (Warehouse/Manufacturing) and specifically Section 30-903(11)(a) provides the best guidance for parking for this use.

Section 30-903(11)(a) requires the following parking:

“... one parking space for each two employees on the major shift or one parking space for each 2,000 square feet of floor area, whichever is greater, plus one space for each company motor vehicle when customarily kept on the premises.”

The likely maximum number of employees during the major shift is 10, thereby requiring 20 parking spaces. Alternatively, assuming approximately 58,900 square feet of floor area, the parking requirement would be 29 spaces. Therefore, current available parking is more than double the required parking.

Satisfaction of Conditional Use Permit Requirements. Elk River City Code Section 30-654 sets forth the standards that must be met in order for a Conditional Use Permit to be issued. The Property and the Proposed Use satisfy all of the required standards. Specifically, the Proposed Use:

1. Will not endanger, injure or detrimentally affect the use and enjoyment of other property in the immediate vicinity or the public health, safety, morals, comfort, convenience or general welfare of the neighborhood or the City;
2. Is consistent with the Elk River Comprehensive Plan;
3. Will not impede the normal and orderly development and improvement of surrounding vacant property;
4. Will be served adequately by and will not adversely affect essential public facilities and services including streets, police and fire protection, drainage, refuse disposal, water and sewer systems, parks and schools; and will not, in particular, create traffic congestion or interference with traffic on adjacent and neighboring public thoroughfares;
5. Will not involve uses, activities, processes, materials, equipment and conditions of operation that will be detrimental to any persons or property because of excessive traffic, noise, smoke, fumes, glare, odors, dust or vibrations;
6. Will not result in the destruction, loss or damage of a natural, scenic or historic feature of major importance; and
7. Will fully comply with all other requirements of this Code, including any applicable requirements and standards for the issuance of a license or permit to establish and operate the proposed use in the city